Get the Facts ✓

The Public Policy Center at the University of Arkansas Division of Agriculture has published neutral, research-based fact sheets on statewide ballot measures since 2004 to provide voters a better understanding of what is being asked of them.

The information contained in this publication goes through a vetting process to ensure its accuracy and neutrality, which includes reviews by:

- **Legal and subject matter experts**
- **Issue supporters**
- **Issue opponents**



How does an issue get on the ballot?

In Arkansas, there are two ways for an issue to appear on the ballot:

- **Legislators vote to put issue on the ballot.**
- **Citizens collect enough voter signatures from across the state.**

For 2026, voters will have four ballot measures to decide. The four came from the Arkansas Legislature. There are no statewide citizen initiatives this year.

Go to www.uaex.uada.edu/ballot for more information.

Arkansas State Ballot Issues Worksheet

I plan to vote...	Use the worksheet below to keep track of your decisions
○ FOR ○ AGAINST	ISSUE NUMBER 1 A constitutional amendment to be known as "The Citizens Only Voting Amendment" and providing that only a citizen of the United States meeting the qualifications of an elector under the Arkansas Constitution may vote in an election in this state. Notes: _____ _____
○ FOR ○ AGAINST	ISSUE NUMBER 2 A constitutional amendment to amend Arkansas Constitution, Article 2, § 5, to protect the right to keep and bear arms. Notes: _____ _____
○ FOR ○ AGAINST	ISSUE NUMBER 3 A constitutional amendment concerning economic development in the state of Arkansas; and authorizing the General Assembly to provide for the creation of economic development districts within cities, counties, or cooperative areas to promote economic development within the economic development district. Notes: _____ _____
○ FOR ○ AGAINST	ISSUE NUMBER 4 Arkansas Water, Waste Disposal, and Pollution Abatement Facilities Financing Act of 2025. Notes: _____ _____



ISSUE NUMBER 2

(Referred to the people by the Arkansas General Assembly)

Right to Keep and Bear Arms Amendment

POPULAR NAME: A constitutional amendment to amend Arkansas Constitution, Article 2, § 5, to protect the right to keep and bear arms.

BALLOT TITLE: An amendment to the Arkansas Constitution to provide that the citizens of the state of Arkansas shall have the right to keep and bear arms for their common defense, for lawful hunting and recreational use, and for any other lawful purpose; providing that the right to keep and bear arms includes without limitation the possession and use of ammunition, firearm accessories, and firearm components; and providing that the right to keep and bear arms is a natural, fundamental, and individual right that shall not be infringed.

What is being proposed?

Issue 2 proposes changing Article 2 of the Arkansas Constitution regarding the right of citizens to keep and bear arms, and emphasizing that keeping and bearing arms are fundamental rights. The proposed constitutional amendment specifies that this right includes the possession and use of ammunition, firearm accessories, and firearm components. In addition to existing language for common defense, the proposal specifies the right to bear arms applies to hunting, recreational purposes, and any other lawful purpose.

How did this issue get on the ballot?

The Arkansas Senate and House of Representatives voted in April 2025 to place SJR11 (Issue 2) on the November 2026

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QUICK LOOK:

What does your vote mean?

FOR: A FOR vote means you are in favor of changing the state constitution to specify that the meaning of "right to keep and bear arms" includes possessing and using ammunition, firearm accessories, and firearm components without limitation and specifying that the right applies to lawful hunting, recreational use and other lawful purposes.

AGAINST: An AGAINST vote means you are not in favor of changing the state constitution regarding the right to keep and bear arms. The existing language in Article 2, Section 5 would remain in place.

Where can I find more information?

The complete wording of this amendment can be found at **uaex. uada.edu/issue2**

You can read the full text of this proposed amendment as passed by legislators at **bit.ly/Issue2-FullText**

The following statements are examples of what supporters and opponents have made public either in media statements, campaign literature, on websites or in interviews with Public Policy Center staff. The University of Arkansas Division of Agriculture does not endorse or validate these statements.

What do supporters say?

- The Second Amendment to the U.S. Constitution deals with firearms, the right to keep and bear arms. I would argue that within the terminology "arms," that includes ammunition, components and accessories but it is not specifically spelled out. In the Arkansas Constitution, it mentions also that it's for their common defense. What this does is it is very clear that it includes ammunition, accessories and components, and it's very clear that it's recognized as an individual right. It is in my opinion trying to clarify the language to where people can't take advantage of it being vague.
- In a time when every tragedy results in renewed calls to disarm law-abiding citizens, SJR11 strengthens our Arkansas Constitution to protect our freedom to keep and bear arms.
- SJR11 acknowledges that a free Arkansas depends on citizens prepared to protect their communities and resist government overreach.
- There's been a lot of time and effort spent making the arguments at all different levels of the judicial system. The more clear we can make it the fewer arguments we have to have and the less time has to be spent debating it.

What do opponents say?

- Our current state constitution already protects an individual's right to bear arms. The addition of this amendment, could make reasonable firearm-safety regulations more difficult to defend.
- This amendment does not do anything to help protect the children.
- Declaring that the right to keep and bear arms includes "without limitation" the possession and use of ammunition and firearm accessories and components could open the door to legal challenges that actually undermine responsible gun ownership and public safety. By using absolute language this amendment could make it harder to enforce existing commonsense gun laws that protect law-abiding citizens from criminals and those that abuse their rights. Instead of strengthening the second amendment it could cause confusion and conflict in our legal system. For example, it could be used to challenge laws restricting possession by individuals convicted of serious crimes or subject to certain domestic violence prohibitions. These legal challenges could make it harder to regulate dangerous firearm accessories like bump stocks or high-capacity magazines.
- Our sheriff, police officers and first responders are already stretched very thin and this amendment may make their jobs harder by undercutting the very laws they rely on to keep firearms out of the wrong hands.

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General Election Ballot. The Arkansas Constitution grants the legislature the right to include up to three constitutional amendments on the general election ballot.

Constitutional amendments require the approval of a majority of voters in a statewide election. Election Day is Nov. 3, 2026.

Who were the main sponsors of this amendment?
Sen. John Payton of Wilburn and Rep. Matt Duffield of Russellville

When was the last time Arkansans voted on this issue?
The last time Arkansans voted on a relevant provision was in 2010 when they approved Amendment 88, a proposal referred by legislators to establish a constitutional right for citizens to hunt, fish, trap and harvest wildlife. The right to keep and bear arms dates back to the 1874 Arkansas Constitution, Article 2, Section 5.

Have other states voted on this issue?
Voters in other states have passed amendments similar to what is proposed in Issue 2. Alabama, Iowa, Louisiana and Missouri



voters adopted similar amendments between 2012 and 2022.

Forty-five states have the right to bear arms in their constitutions and 28 states include the protection of firearms for recreation or individual self-defense.

What does this amendment change?
The proposed amendment's stated intent is "to protect the right to keep and bear arms guaranteed under the Arkansas Constitution."

Article 2, Section 5 of the Arkansas Constitution currently says: "The citizens of this State shall have the right to keep and bear arms, for their common defense."

Legislators propose expanding this section to say:

"(a) The citizens of this State shall have the right to keep and bear arms, for:

(1) Their common defense;
(2) Lawful hunting and recreational use; and
(3) Any other lawful purpose.

(b) The right to keep and bear arms under subsection (a) of this section includes without limitation the possession and use of:

(1) Ammunition;
(2) Firearm accessories; and
(3) Firearm components.

(c) The right to keep and bear arms under subsection (a) of this section is a natural, fundamental, and individual right that shall not be infringed."

If passed, when would Issue 2 take effect?
If approved, the changes listed in this proposal would take effect Jan. 1, 2027.

The following is the proposed constitutional amendment name and title as they will appear on the Arkansas November General Election ballot.

Issue No. 2
(Popular Name)
A Constitutional Amendment to Amend Arkansas Constitution, Article 2, § 5, to Protect the Right to Keep and Bear Arms.

(Ballot Title)
AN AMENDMENT TO THE ARKANSAS CONSTITUTION TO PROVIDE THAT THE CITIZENS OF THE STATE OF ARKANSAS SHALL HAVE THE RIGHT TO KEEP AND BEAR ARMS FOR THEIR COMMON DEFENSE, FOR LAWFUL HUNTING AND RECREATIONAL USE, AND FOR ANY OTHER LAWFUL PURPOSE; PROVIDING THAT THE RIGHT TO KEEP AND BEAR ARMS INCLUDES WITHOUT LIMITATION THE POSSESSION AND USE OF AMMUNITION, FIREARM ACCESSORIES, AND FIREARM COMPONENTS; *AND PROVIDING* THAT THE RIGHT TO KEEP AND BEAR ARMS IS A NATURAL, FUNDAMENTAL, AND INDIVIDUAL RIGHT THAT SHALL *NOT BE INFRINGED*.

☐ FOR ISSUE NO. 2

☐ AGAINST ISSUE NO. 2

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Download this publication at www.uaex.uada.edu/ballot

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PUBLIC POLICY CENTER

DIVISION OF AGRICULTURE
RESEARCH & EXTENSION
University of Arkansas System

501-671-2003 | publicpolicycenter@uada.edu | www.uaex.uada.edu/ppc

www.facebook.com/uappc

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